ASIAN INSTITUTE OF TECHNOLOGY

POLICY AND PROCEDURE STATEMENT

Personnel Affairs

Reference	**PA**	Issued By	**PRESIDENT**
Section	**2**	Responsible Officers	**OHRS Director / OSA Director**
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TITLE: **ETHICAL BEHAVIOR AND GRIEVANCE PROCESS**

I. PREAMBLE

A. Applicability

1. This Ethical Behavior and Grievance Process forms an integral part of the contract of employment, and is binding on all AIT employees.

2. This Ethical Behavior and Grievance Process forms an integral part of the Terms and Conditions of study of all students at AIT.

B. Definitions

1. **'Gender equity'** is the process of being fair to all human beings. To ensure fairness, measures may be taken to compensate for historical and social disadvantages that prevent women and men from operating on a level field. Equity leads to equality.

2. **'Gender equality'** implies that women and men enjoy the same status. Gender equality means that women and men have equal opportunities for realizing their rights and potentials in every field of endeavor.

3. **'Grievance'** refers to a complaint by a member of the community ('the complainant') against another member of the community that a provision of this policy and procedure has been violated. The grievance process is initiated by the complainant.

II. ETHICAL BEHAVIOR

A. General policies

1. The accomplishments, activities and individual differences of other people must be respected.

2. Members of the Institute's community have the right to exercise academic freedom, defined as the freedom to teach, study, discuss, debate and publish without interference, within the context of their academic programs, and with due regard for the beliefs and values of other members of the community, and for the laws, culture and conventions of the Institute's host countries.

3. Individual members of the Institute's community are accountable for their own actions, findings and statements.

4. Members of the Institute's community must not abuse the services, benefits, opportunities and facilities of the Institute, nor use them for their personal financial gain.

5. AIT employees, students and residents must act in the interests of the Institute and avoid engaging in any actions contrary to the policies and interests of the Institute.

6. AIT employees in supervisory positions must at all times use their authority ethically, with respect and sensitivity, and in accordance with the Institute's policies.

7. AIT employees, students and residents have a responsibility to ensure compliance with the policies and procedures of the Institute.

B. Specific requirements

1. An employee must disclose to their supervisor any actual or potential conflict of interest with the interests of the Institute, which may arise from outside activities, professional or otherwise.

2. AIT employees are responsible for developing and maintaining work quality and normal standards of professional behavior, both in themselves and their work colleagues.

3. When expressing personal opinions outside the Institute, AIT employees and students are required to note explicitly that the opinions expressed are personal and do not necessarily represent the position of the Institute.

4. Soliciting personal gifts or other forms of personal reward from anyone with whom the Institute has a business relationship is a serious offence, and is subject to immediate dismissal.

5. An employee can accept an unsolicited personal gift only in the following circumstances:

   - On a festive occasion, such as Christmas, New Year, and other holidays

- On the occasion of a birthday, wedding anniversary, or other personal anniversary
- As a token of appreciation for professional services rendered
- In an exchange of souvenirs with partner or client organizations.

6. Acceptance by an employee of a gift valued at THB 3,000 or more must be reported by the employee to their Unit Head within 15 days of acceptance, giving details as to the description of the item, sources and circumstance leading to the acceptance.

7. Items valued at less than THB 3,000 may be accepted without reporting.

III. HARASSMENT, ABUSE AND DISCRIMINATION

A. General policies

1. The following general policies apply to all employees acting in an official capacity, and to all students, whether on campus, at Institute outreach centers, or at the venues of official Institute activities off-campus.

2. All employees and students have a duty to help create and sustain an environment which is honest, fair and unprejudiced, based on equality and respect for group and individual differences in an exceptionally multi-cultural community.

3. No employee or student shall deny or grant a right or a privilege to another employee or student wholly or partly on the basis of nationality, race, social background, gender, age, marital status, family status, sexual orientation, or disability.

4. An employee or student adjudged to have violated the Institute's policy on harassment, abuse or discrimination will be subject to disciplinary action.

B. Specific offences

1. Sexual harassment

a. 'Sexual harassment' is deliberate or repeated, unwanted behavior of a sexual nature perpetrated upon one individual by another. It includes

- unwelcome or unsolicited sexual advances
- explicit or implicit requests for sexual favors, and
- other physical, oral or written conduct or visual manifestations of a sexual nature,

when submission to or rejection of this conduct explicitly or implicitly affects a person's employment or education, unreasonably interferes with a person's work or educational performance, or creates an intimidating, hostile or offensive working or learning environment.

b. Sexual harassment is a serious disciplinary offence, and will be treated as a serious infringement of the Institute's policies and procedures.

2. Bullying

a. 'Bullying' is the repeated intimidation of another person by the real or threatened infliction of physical, verbal, written, electronically transmitted, or emotional abuse, or through attacks on the property of another.

b. Bullying is a serious disciplinary offence, and will be treated as a serious infringement of the Institute's policies and procedures.

3. Invasion of privacy

a. All members of the community have a right to expect privacy in their personal lives.

4. Discrimination

a. 'Discrimination' is any form of action or speech that prejudicially penalizes or favors any member of the Institute community on the basis of nationality, race, social background, gender, age, marital status, family status, sexual orientation, or disability.

IV. GRIEVANCE PROCESS

A. General policies

1. The Institute is responsible for finding an appropriate solution for the grievances of a member of the community and for providing protection to that person and all persons concerned from any undesirable consequence that may result from their grievances.

2. A Grievance Committee shall receive all grievances. It is composed of a representative from among students, faculty, and staff members, as well as the OHRS and OSA Directors. The Grievance Committee shall elect a Chair from among its members, which will have a term of two years and can serve for not more than two consecutive terms. To ensure continuity, half of the members will be replaced every two years.

Members of the Grievance Committee will receive training in handling and analyzing grievances, counseling and mediation as conciliation methods, interviewing complainants and witnesses, as well as in preparing and presenting cases. The Grievance committee can invite external experts when necessary.

3. Both the complainant and the defendant have the right to object to any member of the Grievance Committee, and ask for a member(s) of the Committee to be excluded from meetings. In such instances, the Grievance Committee Chair will appoint an alternate member(s) to the Committee.

4. The complainant and the defendant have the right to make up to, but not more than three such challenges.

5. The Grievance Committee shall perform three main roles:

   a. **Information.** It is the function of the Grievance Committee to assist members in understanding their rights and duties within the Institute, as well as the processes outlined in this P&P.

   b. **Dealing with Grievances.** The principal role of the Grievance Committee is to aid in the presentation of the grievances in accordance with Institute P&Ps, contractual agreements, and practices. The Grievance Committee must be prepared to identify breaches of the Institute P&Ps, etc. In performing their duties, they must protect the interests of all members of the AIT community.

   c. **Negotiation.** The Grievance Committee should express in writing what came to light during the processing of grievances. They must inform the President of all settlements made during the grievance process.

B. Grievance procedure

1. Initiating a complaint

a. A complainant is required to initiate the grievance process by submitting the grievance in writing (please refer to the Grievance / Complaint Fact Sheet in the Annex as a guide) to the Grievance Committee or discussing their grievance in person with any member of the Grievance Committee.

b. The Grievance Committee or any of its representatives is responsible for explaining the informal and formal grievance processes to the complainant, and advising the complainant on the most appropriate course of action.

c. The Grievance Committee or any of its representatives will ordinarily recommend that the complainant first address their grievance informally.

d. The main exception to the provisions above is when it is suspected that a serious crime has been committed, or may be committed unless preventive measures are taken. When there are strong grounds to conclude that a serious crime such as rape, grievous bodily harm, assault, or theft has been committed, the Grievance Committee should consult with the President, and if necessary, inform the police.

2. Informal grievance process

a. The informal grievance process involves conciliation through three main methods: counseling, direct confrontation, or mediation by a third party. It is not necessary for a complainant to engage in all three processes.

b. The informal grievance process lasts no more than two weeks from the date on which the complaint is initiated.

c. **'Counseling'** refers to extended discussion of the complaint with the Grievance Committee. All counseling is off the record, and in confidence.

d. **'Direct confrontation'** involves the complainant writing a statement to the individual(s) concerned, describing the unwelcome behavior and its effect, and stating that the behavior must cease.

e. The complainant may seek the advice of the Grievance Committee on what to say or write.

f. The person(s) towards whom the direct confrontation is directed may likewise use consultation and direct confrontation in their response.

g. Reprisal of any kind against an individual or group initiating such direct confrontation in good faith would itself amount to harassment, and risk disciplinary process.

h. **'Third-party mediation'** requires the participation of someone who was not a party to the complaint.

i. A mediator may be proposed either by the Grievance Committee, or by either one or more of the parties to the complaint, and whose intervention as a mediator is acceptable to both sides.

j. The mediator will propose a course of action acceptable to the two parties, and usually involving several meetings, either separately or together, in an attempt to reach a mutually acceptable understanding for the parties' future interactions. Both the complainant and complainee(s) are permitted to request one observer each, to monitor all proceedings.

k. Outcomes of the third-party mediation will include explicit agreements about future conduct, changes in personnel, changes in study or workplace assignments, or other appropriate remedies.

l. Outcomes of the **mediation** shall include explicit written agreements to be submitted to the Grievance Committee.

m. Any violation of such agreements would itself amount to harassment, and risk disciplinary process.

3. Formal grievance process

a. If the informal grievance process, fails to lead to a satisfactory resolution of the complaint, the complainant who has suffered from harassment, abuse or discrimination may lodge a formal complaint with the Grievance Committee. No anonymous complaints will be accepted.

b. The formal complaint must be in writing, and should state clearly all facts for consideration.

c. The grievance must include:

i. the alleged violation and/or misapplication of a stated policy or procedure;
ii. a statement of the relevant facts supporting the complainant's position, e.g., date(s), event(s), name(s)/title of person(s) involved, witnesses; and
iii. the remedy sought by the complainant

d. The Grievance Committee is required to address the complaint in utmost confidentiality and with due regard to the privacy of the complainant, and of the person accused ('the defendant').

e. **Processing the Grievance.** The Grievance Committee will gather facts, ascertain all facts material to the complaint and the relevant policies and procedures of AIT, and analyze the grievance. It is possible that a valid grievance may arise during proceedings which would not necessarily be excluded from the grievance procedure.

i. **Fact-gathering.** When the Grievance Committee is involved in a grievance procedure, they should keep in mind that facts are the substance of any grievance, and the fact-gathering process is of fundamental importance. Facts are available from two sources – witnesses and documents. The individual complainant will normally be the first source of information in strict anonymity and confidentiality. In gathering the facts, the Grievance Committee should put all points in writing even if the grievance is not presented. In obtaining evidence, the Grievance Committee should concentrate on recording facts, not arguments. The matter can only be taken further based on facts.

ii. **Analyzing the Grievance.** Having gathered the relevant facts, the Grievance Committee should proceed to analyze the grievance. It is of particular importance to identify the cause of the grievance as this will determine:

- the nature of evidence and argument required;
- the chances of settling the matter internally;
- the importance of the grievance to the individual or to the Institute.

f. The Grievance Committee will submit a confidential report to the President and the Vice President for Administration (VPA), regarding further action required.

g. False accusations or false evidence presented in support of an accusation of harassment, abuse, or discrimination presented during the formal grievance process is considered a serious offence, and will itself constitute grounds for disciplinary process.

4. Grievance Tribunal

a. When further action is required, the President shall appoint a Grievance Tribunal.

b. The Grievance Tribunal will be composed of a chairperson and no more than three additional members.

c. In sexual harassment cases, an appropriate balance between male and female members is essential.

d. The written notification of the hearing should give:

- the time and place of the hearing;
- the name(s) of the complainant(s);

- a general description of the conduct complained of and the policies allegedly infringed; and
- the name of the Institute office where any additional information may be obtained.

e. Both the complainant and the defendant have the right to object to any member of the Grievance Tribunal, and ask for a member(s) of the Tribunal to be replaced. In such instances, the President will appoint an alternate member(s) to the Tribunal.

f. The complainant and the defendant have the right to make up to, but not more than three such challenges.

g. The Grievance Tribunal shall be convened at the earliest possible date after the formal complaint.

5. Process

a. The Grievance Tribunal will conduct its hearings so that the privacy of all concerned is respected to the fullest extent possible. Hearings shall be open only to the members of the Grievance Tribunal, the complainant(s) and the defendant, and any witnesses called.

b. The Grievance Tribunal must seek to ascertain, to the best of its ability, the facts of the case.

c. In ascertaining the facts of the case, the Tribunal may call witnesses to testify before the Grievance Tribunal. Both the complainant and the defendant may be called as witnesses.

d. Having considered all the facts, the Grievance Tribunal will submit a report to the President, detailing evidence, findings and recommended actions, within 30 days of the date of the complaint.

e. The Grievance Tribunal will conduct its inquiry fairly and impartially, without making prior presumptions about the case, or about the guilt or innocence of the defendant.

f. After having received the report of the Grievance Tribunal, the President may take further legal advice, before acting.

g. Reprisal of any kind against an individual or group initiating the formal grievance process in good faith, or against anyone involved in advising the initiation of such action, would itself amount to harassment, and risk disciplinary process.

h. The President may delegate their responsibilities to a Vice President.

6. Suspension from employment

a. When the defendant is an employee, pending the report of the Grievance Tribunal, the President may, if they consider such action justified, suspend the defendant from work until completion of the investigation.

b. When a defendant is suspended from employment pending the conclusion of the investigation by a Grievance Tribunal, they will continue to receive their full salary.

C. Files

1. A copy of the report shall be kept in the Office of the President, and be accessible to the immediate Supervisor, Director of OHRS, Director of OSA, or the Director of OAA.

2. The Grievance Tribunal will recommend whether a copy of the report should be placed in the defendant's file in OHRS or OSA.

3. A copy of the report will not be placed in the complainant's file.

D. Right of appeal

1. If either the complainant or the defendant is not satisfied with the decision of the President, they may appeal to the Board, through its Audit Committee.

2. The Audit Committee will make written findings on the material facts and a recommendation, on which the Board will make a decision on the grievance.

3. Any decision is granted without prejudice to any individual's right of recourse due to legal process under Thai law.

The 8 December 2021 revised version is with effect from 1 January 2022.

Modification History:	1st Revision	PAC: revised on 3 October 2007, adopted on 5 September 2007, reviewed on 25 July 2007
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	2nd Revision	PAC: approved on 24 February 2009
	3rd Revision	PAC: approved on 1 June 2011
Related Policies	This P&P replaces sections VIII, IX, XI of the current P&P on Employment of Faculty and Staff: General Work Regulations	
Keywords		
Rationale for Revisions:	(December 2021) • Establishment of a Grievance Committee to replace community counsellors, and improved the grievance process (1 June 2011) On community counsellors: composition was revised; functions added; and to be recommended by campus residents	